

HOUSE BILL 557

By Capley

AN ACT to amend Tennessee Code Annotated, Title 58,
Chapter 2, Part 1, relative to natural disasters.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 58, Chapter 2, Part 1, is amended by adding the following as a new section:

(a) There is created a program to be administered by the agency that is known and may be cited as the "State Disaster Relief Program."

(b) A county emergency management agency may request a grant from the program to help offset the costs incurred by the county in responding to a disaster if:

- (1) A disaster has occurred within the county;
- (2) The county executive has declared a state of emergency; and
- (3) The damages resulting from the disaster do not meet the threshold

for federal disaster relief.

(c) A county receiving a grant under this section may use the money:

- (1) To repair or replace public roads, buildings, utilities, and other infrastructure owned by the local governments;
- (2) For emergency measures for saving lives;
- (3) To protect public health and safety or property; and
- (4) To remove debris from publicly owned land and waterways.

(d) The agency shall evaluate a request for a grant, determine the amount of the grant, and disburse the grant if the agency determines that the criteria in subsection (b) have been met.

(e) Grants under this section are contingent upon the availability of funds that have been specifically allocated for the program in the general appropriations act. It is the legislative intent that appropriations to the program recur on a yearly basis.

(f) A county must not receive more than two hundred fifty thousand dollars (\$250,000) in grant disbursements under this section in a fiscal year.

(g) As used in this section:

(1) "Disaster" means a hurricane, tornado, storm, flood, high water, wind-driven water, tidal wave, tsunami, earthquake, volcanic eruption, landslide, mudslide, snowstorm, ice storm, drought, fire, explosion, civil disturbance, or other catastrophe that causes or may cause substantial damage or injury to property; and

(2) "Program" means the state disaster relief program created in subsection (a).

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.